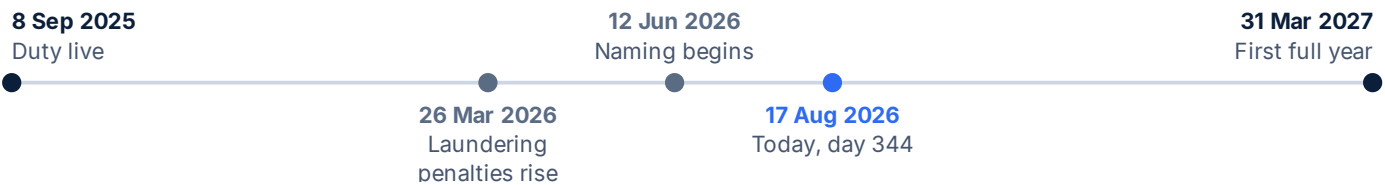


The Duty Already Fell Due 344 Times

Every date below sits in a statute, a regulation or a published regulator notice, and none waits on a decision anyone has still to take. The date that governs the sale is not in the future. It is 8 September 2025, when the duty to record each end user's position at the close of every day came into force. A firm that has not been keeping that record is not approaching a deadline. It is behind one.

344	8 SEP 2025	0	12 JUN 2026
TIMES THE DAILY DUTY HAS FALLEN DUE	DATE THE SAFEGUARDING DUTY CAME INTO FORCE	OF THOSE DAYS THAT CAN BE RECORDED LATER	DATE VIOLATIONS BEGAN BEING PUBLISHED BY NAME

1 The dates, in the order they arrive



The line runs from the day the duty came into force to the first annual report covering a full calendar year of it. Today sits at day 344 of that span. The annual report on 31 March repeats every year without end, so it is carried in the table overleaf as well as here.

What changed in this document, and why

An earlier version of this page stated that a first mandatory independent review falls on 8 September 2028 and reads three years back. Section 17 of the regulation was read directly on 17 August 2026. It requires a review at least once every three years, carried out by somebody who had no hand in building the framework. It names no first date and imposes no lookback, and the Bank of Canada page the claim was attributed to does not carry it either. The claim is withdrawn. It was the strongest sentence in the document and it was not true.

SOURCES ON THIS PAGE

Source	What it carries	Class
SOR/2023-229	Retail Payment Activities Regulations. Section 15 requires a ledger showing each end user's funds at the end of each day. Section 17 requires an independent review at least once every three years by somebody with no hand in the framework, and names no first date. Open	Primary
Bank of Canada, retail payments supervision	The safeguarding duty has applied since 8 September 2025. Open	Primary

2 What each date requires, and of whom

Date	What comes into force	Where it is written	Who it binds
8 Sep 2025	The framework for safeguarding money that belongs to end users, including a ledger showing each end user's funds at the close of every day	SOR/2023-229 s.15	Payment service providers that hold funds
31 Mar, yearly	An annual report filed with the Bank of Canada, repeating every year without end	SOR/2023-229 s.18	Every registered payment service provider
26 Mar 2026	Money laundering penalties raised to \$4,000,000 for a person and \$20,000,000 for a company, per prescribed violation, with a cap on a single notice at the greater of \$20,000,000 or three per cent of gross global revenue	PCMLTFA, as amended	Every reporting entity
12 Jun 2026	The Bank of Canada begins publishing notices of violation, naming the firm, the nature of the violation and any penalty	Bank of Canada notice	Every registered payment service provider
1 May 2027	OSFI guideline E-23 on model risk management takes effect. It does not make a payment service provider into a federally regulated institution	OSFI E-23	Federally regulated institutions
At least every three years	An independent review of the safeguarding framework, by somebody who had no hand in building or maintaining it. The regulation sets the interval and names no first date	SOR/2023-229 s.17	Payment service providers that hold funds

Legend. PCMLTFA is the Proceeds of Crime (Money Laundering) and Terrorist Financing Act. OSFI is the Office of the Superintendent of Financial Institutions. A payment service provider is a business that moves money for other people and is registered with the Bank of Canada. All amounts are Canadian dollars.

The last row was previously dated 8 September 2028. It now carries the interval the regulation actually states. A reader who wants to plan against a first review should treat its timing as set by the regulator's supervisory cycle rather than by the calendar, and should assume it can arrive earlier than three years rather than later, because the regulation sets a maximum interval and not a minimum one.

SOURCES ON THIS PAGE

Source	What it carries	Class
SOR/2023-229	Sections 15, 17 and 18, read in full. Open	Primary
Bank of Canada, retail payments supervision	Registration, the annual report and the supervisory approach. Open	Primary
Money laundering penalty regulations	The amended maxima in force from 26 March 2026. Open	Primary
PCMLTFA	The cap on a single notice, at the greater of \$20,000,000 or three per cent of gross global revenue. Open	Primary

3

Why a late start cannot be repaired

The duty is daily, and it is already running

The regulation asks for a ledger showing each end user's funds at the end of every day. Not a policy, not a quarterly reconciliation. Every day is its own entry, and 344 of them have already fallen due. A firm that started late does not have a smaller version of the record. It has a record with holes in it, and the holes are dated.

Reconstruction is a different thing, bought at a different price

Rebuilding a daily position from bank statements after the fact is an engagement: priced, staffed and scoped on its own. What it produces is a reconstruction rather than a contemporaneous record, and a reviewer can tell the difference because one was made on the day and the other was not.

The reviewer cannot be the firm that wrote the policy

The regulation requires that the person carrying out the review had no role in establishing, implementing or maintaining the framework being reviewed. A firm cannot hand the work to the consultant who built it, which is what creates the independent channel this business depends on.

Being unprepared is now visible from outside

Since 12 June 2026 a violation is published with the firm identified, the nature of the violation stated and any penalty named. Failing out of sight stopped being an option before the first review of anybody's framework has been held.

Every day that passes converts a subscription into a reconstruction project

The same firm buying the same product a year from now buys a smaller thing at a higher cost, because a year of positions that could have been recorded on the day will instead have to be rebuilt from whatever the bank kept. That argument needs no deadline. It works because the duty is live and the days are gone.

4

What falls due next

31 March 2027	Annual report to the Bank of Canada, the first covering a full calendar year of the duty. 226 days from today.
1 May 2027	OSFI guideline E-23 takes effect for federally regulated institutions. Named because it is often misread as applying to payment service providers. It does not.
At least once every three years	An independent review by somebody with no hand in building the framework. The regulation sets the interval, does not name a first date, and this document no longer states one.

SOURCES ON THIS PAGE

Source	What it carries	Class
Bank of Canada, safeguarding end user funds	The guideline setting out the ledger, the reconciliation, and the evidence a reviewer must be able to open and trace. Open	Primary